

25PR00310 Estate of Terrence Thomas Gallagher

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-07-28

Motion: Petition for Letters of Special Administration

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Tentative Ruling: Estate of Terrence Thomas Gallagher

Case Number

25PR00310

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 07/28/2026 - 09:00

Nature of Proceedings

Petition for Letters of Special Administration

Tentative Ruling

Probate Notes:

Appearances required.

On June 10, 2025, Isabel Espinoza filed a Petition for Probate of Will and Letters Testamentary. At the first hearing on that petition, the Court continued the matter due to objections.

On August 25, 2025, Tedd Barnett filed a very confusingly titled petition that appears to be challenging the purported estate plan submitted by Ms. Espinoza, pursuant to Probate Code sections §8000, §8004(b), §8250 et seq., §8402, §8502(b) and (d), and §17200(a) and (b). That petition contained what appears to be the following causes/requests:

A will contest ("PETITION TO CONTEST POUR-OVER WILL AND GROUNDS OF OPPOSITION TO PROBATE OF PURPORTED WILL).

Internal Affairs of a Trust ("PETITION TO CONTEST THE JT LIVING TRUST INSTRUMENT AND GROUNDS THEREOF")

Objection to Petition for Probate filed by Espinoza (OBJECTION TO APPOINT ISABEL ESPINOZA AS EXECUTOR OF THE ESTATE OF TERRENCE THOMAS GALLAGHER")

Continuance ("REQUEST FOR CONTINUANCE TO ALLOW DISCOVERY")

Request for Trial ("REQUEST FOR TRIAL")

At the second hearing on Isabel Espinoza's June 2025 petition, the Court again continued the matter to allow objections to be filed, warning that failure to file written objections would be waived. Isabel Espinoza filed a written objection on November 7, 2025.

On November 18, 2025, the Court struck the Internal Affairs grounds in Mr. Barnett's objection, and continued all remaining matters to March 24, 2026. At that hearing, the Court denied a request to consolidate this case with case nos. 24PR00709 and 26PR00080, and continued all three matters to June 28, 2026.

Mr. Barnett's August 2025 objection placed Ms. Espinoza's Petition for Probate at issue, requiring evidentiary hearing to resolve (In re Estate of Lensch (2009) 177 Cal.App.4th 667, 676; Conservatorship of Farrant (2021) 67 Cal.App.5th 370, 377), but Mr. Vanderkellen filed a competing petition for appointment of Special Administrator on May 6, 2026.

Parties must come prepared to discuss whether Mr. Vanderkellen should be granted this status, with general powers.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

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